

PLJ 2021 Lahore 176
[Rawalpindi Bench, Rawalpindi]
Present: ABID AZIZ SHEIKH, J.
Sardar IMTIAZ KHAN--Petitioner

versus

COMMISSIONER RAWALPINDI DIVISION, RAWALPINDI and 5 others--Respondents

C.P. No. 1770 of 2018, decided on 15.10.2020.

Constitution of Pakistan, 1973--

---Art. 199--Acquisition of land for defence purpose--Grievance of petitioner--Filing of application before District Collector--Dismissed--Filing of objections--Announcement of accusation award--Maintainability--Main argument of petitioner's counsel is that land of Major General (R) Muhammad Asif Khatak in Khasra No. 1676, 1677, 1678 and 1684 was excluded just to give him benefit, hence petitioner has been discriminated--Firstly, Major General (R) Muhammad Asif Khatak has not been impleaded as party in this petition to respond to these allegations and secondly respondents have explained that most of his piece of land is out of proposed dimension of Drop Zone area, hence same was not acquired--It is not cast of petitioner that his land does not fall within proposed area for Drop Zone or same is being acquired for any purpose other than defence purpose and Drop Zone and training area--No case of discrimination under Article 25 of Constitution of Islamic Republic of Pakistan, 1973, has been made out--Apprehension of petitioner that he is not expecting reasonable compensation, for his land being acquired, said ground or any other related ground can only be agitated by petitioner before appropriate forum by filing a Reference under Section 18 of Act against Award and not through this Constitutional petition--Petition was dismissed. [Pp. 178 & 179] A, B & C

Mr. Hassan Raza Pasha, Advocate for Petitioner.

Ch. Muhammad Hussain, Deputy Attorney-General for Pakistan.

Mirza Asif Abbas, *Mr. Qaisar Abbas Shah*, Assistant Advocate General, Punjab, on behalf of Respondents No. 1 to 3.

Barrister Umer Aslam, for Respondent No. 4.

Date for Haring: 15.10.2020.

ORDER

This constitutional petition has been filed with the following prayer:

“It is, therefore very respectfully prayed that instant writ petition may kindly be accepted, the Notification under Section 4 of the Land Acquisition Act dated 20.07.2016 passed by respondent No. 2 and Notification under Section 5 No. 5 dated 3514/LAC/ATK dated 17.07.2017 and order dated 06.06.2018 passed by Respondent No. 1 and the other order dated 24.06.2017 passed by Respondent No. 2 may also be set aside to the extent of petitioner’s land and respondents may kindly be directed to exclude the land of petitioner as mentioned in Para 1 of the writ petition, along with Khasra No. 300 (غیر ممکن راستہ) adjacent to Khasra Nos. 214, 215 as shown on the Aks Shajra as the land of Major General (R) Asif has been excluded to eliminate, the discrimination and to save the precious and fundamental rights of the petitioner because the said land is only source of livelihood of the petitioner and his family. Any other relief which is just and proper may kindly be granted in the interest of justice.”

2. Relevant facts are that land measuring 7191-Kanal 13-Maria, situated in village Surag Salar, Chhoi Garyala, Dhair, Barotha, Tehsil and District Attock was being acquired for defence purpose i.e. Drop Zone and training area for Headquarter 11-Special Service Brigade Brotha Garrison. The grievance of the petitioner is that aforesaid land also include the land of the petitioner in revenue estate Surag Salar, Tehsil Attock. The petitioner requested Respondent No. 2 to exclude his land from proposed acquired land in same manner as land of one Major General (R) Muhammad Asif Khatak, was excluded, however, the petitioner’s land was not excluded. The petitioner being aggrieved filed W.P. No. 1493/2017 before this Court, which was disposed of with direction to District Collector to decide petitioner’s application, however, said application was dismissed on 24.06.2017. The petitioner again filed W.P. No. 2210/2017 which was disposed of on 27.02.2018 being not pressed and awaiting decision of petitioner’s objections before the Collector under Section 5-A of the Land Acquisition Act, 1894 (**Act**), but the said objections were also dismissed on 06.06.2018, hence this constitutional petition.

3. The learned counsel for the petitioner submits that the petitioner has been discriminated as respondents have excluded land in Khasra Nos. 1676, 1677, 1678 and 1684 owned by Major General (R) Muhammad Asif Khatak just to give him benefit, however, the land

of the petitioner has been included for acquisition. He further submits that petitioner has a valuable land which is his only source of livelihood and he has apprehension that only a meagre amount shall be offered to the petitioner. He further submits that there is no public purpose involved in the acquisition of land as training area is already available for the last 40 years.

4. The learned counsel for the respondents on the other hand submits that Acquisition Award dated 05.10.2020 has already been announced, therefore, the petitioner, if aggrieved, should file a Reference under Section 18 of the Act and this writ petition is not maintainable. He further submits that most of the land of Major General (R) Muhammad Asif Khatak is out of proposed dimension and Drop Zone, hence same was not acquired, however, 80-Kanal of land of Major General (R) Muhammad Asif Khatak has been acquired for Drop Zone. To support their contention, the respondent has placed on record sketch/Google image of the Drop Zone area. He further submits that hectic training schedule and security aspect do not permit that ownership of proposed land to be allowed to remain with the land owners, hence the land was acquired for public purpose.

5. Arguments heard. The main argument of the petitioner's learned counsel is that the land of Major General (R) Muhammad Asif Khatak in Khasra No. 1676, 1677, 1678 and 1684 was excluded just to give him benefit, hence the petitioner has been discriminated. Firstly, Major General (R) Muhammad Asif Khatak has not been impleaded as party in this petition to respond to these allegations and secondly the respondents have explained that most of his piece of land is out of the proposed dimension of the Drop Zone area, hence same was not acquired. It is also stated that some of his land which comes within the Drop Zone area was acquired through the Award dated 05.10.2020. It is not the case of the petitioner that his land does not fall within the proposed area for Drop Zone or the same is being acquired for any purpose other than defence purpose and Drop Zone and training area. In the circumstances, no case of discrimination under Article 25 of the Constitution of Islamic Republic of Pakistan, 1973, has been made out.

6. Even otherwise, the question whether piece of land of Major General (R) Muhammad Asif Khatak which was not acquired falls within the dimension of Drop Zone or not beside being a matter to be decided by experts, is a disputed question of fact and cannot be agitated and decided in summary proceedings of this constitutional petition.

7. So far as the apprehension of the petitioner that he is not expecting reasonable compensation, for his land being acquired, the said ground or any other related ground can only be agitated by the petitioner before the appropriate forum by filing a Reference under Section 18 of the Act against the Award dated 05.10.2020 and not through this Constitutional petition.

8. In view of above discussion, **this petition being meritless is dismissed.**

(Y.A.) Petition dismissed